

KALE REALTY

NAR JUST DREW A LINE ON YOUR LISTING PHOTOS.

Most agents don't know exactly where it sits.

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**"ENHANCEMENT"
AND
"MISREPRESENTATION"
ARE NOT THE SAME
EDIT.**

One keeps a listing photo honest. The other can end a complaint in your favor or against you.

BRIGHTENING THE SKY IS NOT THE SAME MOVE AS ERASING A POWER LINE.

NAR's Code of Ethics requires members to show a "true picture" in marketing and to refrain from concealing pertinent facts, and its own August 2026 guidance says AI tools should be used to "show possibilities" in a home, never to "rewrite reality." California's AB 723, in effect since January 2026, goes further and requires licensees to disclose any digitally altered image with a public link to the original. Wisconsin's Act 69 follows in 2027. Adjusting light or color is enhancement. Removing a permanent fixture, concealing a defect, or changing a structural feature like a garage or a pool crosses into the kind of edit both the ethics rule and the new laws are built to catch.

RUN EVERY LISTING PHOTO THROUGH THIS BEFORE IT GOES LIVE:

- 1 Ask what actually changed.**

Color, brightness, and sky replacement are enhancement. Removing or adding a permanent feature is not.
- 2 Keep the original file.**

If your state ever asks for it, "I don't have the unedited version" is not an answer you want to give.
- 3 Check your state's disclosure rule.**

California and Wisconsin already require a public link to the original photo when an image is digitally altered. More states are watching those two.

THE TAKEAWAY

**IF THE EDIT
CHANGES WHAT A
BUYER WILL SEE IN
PERSON, IT'S NOT
ENHANCEMENT
ANYMORE.**

Before your next listing goes live, open the photo folder and ask what was actually changed.